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2026.PHHC.086983



IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M-33036-2026
Decided On: 08.06.2026

ARUN @ PARAS

....PETITIONER(S)

VERSUS

STATE OF HARYANA AND ANR

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. Chander Kant Rana, Advocate for the petitioner

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.327 dated 20.12.2025 under Section 110, 190, 191(3), 333, 351(2) of BNS, 2023 (earlier Sections 308, 149, 148, 452, 506 of IPC) registered at Police Station Chhappar, District Yamuna Nagar, Haryana.

2. Contention

On behalf of the petitioner

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case. It is contended that the allegations levelled against the petitioner are wholly baseless, vague, and without any foundation. The petitioner has not committed any offence, and no specific role has been attributed to him in the alleged incident.

It is further submitted that the co-accused have already been granted the concession of anticipatory bail vide orders dated 18.05.2026 (P-7) and 29.05.2026 (P-8) by the learned trial Court. It is also contended that no serious injury has been caused to the complainant.

The petitioner further submits that he is ready and willing to join the investigation and cooperate with the investigating agency.

Notice of motion.

On behalf of the State

On the asking of the Court, Ms. Mayuri Lakhanpal Kalia, DAG Haryana accepts notice on behalf of the respondent–State and vehemently opposes the prayer made by learned counsel for the petitioner on the ground that the petitioner, in conspiracy with the co-accused, inflicted injuries on the head of the complainant with the intention to kill him. It is further stated that the incident is stated to have been captured in the CCTV camera installed at the complainant's house.

3. Analysis

In the present case, it is an admitted position that the injuries have been declared simple in nature, as fairly pointed out by learned State counsel. It also emerges from the record that the alleged weapon of offence, i.e., an axe, has already been recovered from the spot. As per the medico-legal report dated 20.12.2025 (P-2), none of the injuries has been found to be grievous in nature, much less serious. The said position is further corroborated by the CT scan report (P-3).

In view of the above facts and circumstances, and considering that nothing further is required to be recovered from the petitioner, coupled with the undertaking furnished in para 13 of the petition that he is ready and willing to

join the investigation and shall fully cooperate with the investigating agency, this Court finds no ground to deny the present petition.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stand cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

08.06.2026

NainaRajput

Whether speaking/reasoned : *Yes/No*

Whether reportable : *Yes/No*